

Kriti Singh vs Akshay Panwar on 15 April, 2024

Author: Rajiv Shakdher

Bench: Rajiv Shakdher

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IN THE HIGH COURT OF DELHI AT NEW DELHI
MAT.APP.(F.C.) 85/2024
KRITI SINGH

AKSHAY PANWAR

CORAM:

HON'BLE MR JUSTICE RAJIV SHAKDHER
HON'BLE MR JUSTICE SAURABH BANERJEE
ORDER

% 15.04.2024 [Physical Hearing/Hybrid Hearing (as per request)]

1. Allowed, subject to just exceptions.

2. Allowed, subject to the appellant filing legible copies of the annexures, at least three (03) days before the next date of hearing. CM APPL. 16388/2024 [Application filed on behalf of the appellant seeking a direction to requisition the Family Court record]

3. This is an application filed by the appellant seeking a direction to requisition the Family Court record.

4. The application is disposed of with a direction to the Registry to summon the Family Court record, albeit in digitized form.

MAT.APP.(F.C.) 85/2024 page 1 of 3 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 22/04/2024 at 20:30:29 MAT.APP.(F.C.) 85/2024, CM APPL. 16385/2024 [Application filed on behalf of the appellant seeking ex parte ad interim stay] and CM APPL. 16389/2024 [Application filed on behalf of the appellant seeking interim maintenance]

5. This appeal is directed against the order dated 06.02.2024 passed by the Family Court concerning applications moved by the appellant/wife under Section 24 of the Hindu Marriage Act, 1955 [in short, "HMA"] and Section 125 of the Code of Criminal Procedure, 1973 [in short, "Cr.P.C."].

6. The record shows that on 22.03.2023, the trial court, after recording that the respondent was employed in the Merchant Navy and had been earning till about December, 2022, as per his own stand, Rs.1.25 lakh per month, issued an ad-interim maintenance order in favour of the appellant. The respondent was directed to pay Rs.25,000/- per month to the appellant by the 10th day of every month, commencing from March, 2023.

7. A perusal of the impugned order shows that both the applications under Section 24 of the HMA and Section 125 Cr.P.C. were disposed of together with the following observations:

"30. Order dt.22.03.2023 passed in maintenance petition bearing Mt. No. 15/2013 to the extent it granted ad-interim maintenance to the petitioner stands merged in this order. Amount already paid under ad- interim maintenance shall remain with petitioner in trust and shall be adjusted against maintenance if petition is allowed subsequently or be refunded to the respondent in case petition is dismissed subsequently."

8. Mr. Ajay Mehrotra, learned counsel, who appears on behalf of the appellant, has drawn our attention to the document appended on page 1271 of the case file, which discloses that between 01.12.2022 and 20.12.2022 the respondent appears to have earned USD 5267.99.

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8.1 According to the appellant, even at a point in time when order dated 22.03.2023 was passed, the respondent was earning, in Indian rupees, remuneration amounting to approximately 4 lakhs per month.

9. Mr. Mehrotra informs us that the application under Section 24 of the HMA along with the divorce petition was filed on 12.12.2022.

10. Issue notice to the respondent via all permissible modes, including e- mail.

11. List the appeal on 08.07.2024.

12. For the moment, the respondent will continue to pay maintenance to the appellant in terms of the order dated 22.03.2023.

13. Parties will act based on the digitally signed copy of the order.

APRIL 15, 2024 /tr

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